

1 ENGROSSED SENATE AMENDMENT
TO
2 ENGROSSED HOUSE
BILL NO. 4268

By: Johns and Waldron of the
House

and

Pugh of the Senate

[education - Teacher Effectiveness and Excellence
Act - terms - *** bonus - Office of Educational
Quality and Accountability - report - codification
- effective date -
emergency]

14 AUTHOR: Add the following House Coauthor: Rosecrants

15 AMENDMENT NO. 1. Page 1, strike the stricken title, enacting clause
and entire bill and insert

17 "An Act relating to schools; creating the Teacher
Effectiveness and Excellence Act; providing short
18 title; defining terms; establishing the Growth-Based
Teacher Compensation Program as a pilot program to be
19 administered by the State Board of Education
beginning in certain school year; providing
20 eligibility criteria; directing the State Board of
Education to establish selection criteria; directing
21 certain teachers to receive certain annual
performance-based compensation; providing for
22 promulgation of rules; defining terms; establishing
the National Board Certification Bonus Program;
23 directing certain teachers to receive certain bonus
for certain period of time; providing eligibility
24 criteria; directing bonus payments to be made from

1 certain fund; prohibiting bonus amount from being
2 included in certain calculation; prohibiting a school
3 district from being liable for certain payment;
4 providing for promulgation of rules; directing the
5 Office of Educational Quality and Accountability to
6 contract with an independent evaluator to conduct
7 certain evaluation and report; providing for contents
8 of evaluation; requiring electronic submission of
9 certain report; amending 70 O.S. 2021, Section 3-
10 116.2, which relates to the Commission for
11 Educational Quality and Accountability; directing the
12 terms of certain members to be staggered upon certain
13 date; directing terms of members to be in accordance
14 with certain designations; amending 70 O.S. 2021,
15 Section 3-116.5, which relates to Commission
16 reporting requirements; directing certain report to
17 be electronically submitted with certain frequency;
18 allowing the Commission to use certain funds to
19 perform its duties; amending 70 O.S. 2021, Section 6-
20 211, which relates to the educator supply-and-demand
21 study; directing the Commission, rather than the
22 State Board of Education, to conduct the study in
23 certain cooperation; amending 70 O.S. 2021, Section
24 1210.531, which relates to the Oklahoma Educational
Indicators Program; directing the Commission to
include certain data in certain program; directing
the Commission to be provided certain data within
certain time period; directing the State Board of
Education to ensure certain contracts include certain
requirement; allowing the Commission to contract with
an independent third party to receive, process, and
report certain data; updating statutory references;
updating statutory language; providing for
noncodification; providing for codification;
providing an effective date; and declaring an
emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Teacher
Effectiveness and Excellence Act".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 6-213 of Title 70, unless there
3 is created a duplication in numbering, reads as follows:

4 A. As used in this section:

5 1. "Eligible teacher" means a full-time certified teacher in
6 grades four through eight teaching English language arts and
7 mathematics;

8 2. "Participating school" means a public or charter elementary
9 or middle school serving students in grades four through eight;

10 3. "Recognized teacher" means an eligible teacher whose
11 students demonstrate student growth at or above an established
12 growth threshold; and

13 4. "Student academic growth" means annual student progress as
14 measured by the Oklahoma School Testing Program.

15 B. There is hereby established the Growth-Based Teacher
16 Compensation Program to be administered by the State Board of
17 Education. Beginning with the 2026-2027 school year, the pilot
18 program shall operate for a minimum of three (3) consecutive school
19 years.

20 C. To be eligible to participate in the program, a teacher
21 shall be a full-time certified teacher in grades four through eight
22 teaching English language arts and mathematics at a participating
23 school. The pilot program shall consist of one thousand five
24 hundred (1,500) teachers representing approximately fifteen percent

1 (15%) of the highest-performing teachers serving grades four through
2 eight in eligible schools in this state. The State Board of
3 Education shall establish criteria for the selection of recognized
4 teachers to participate in the pilot program.

5 D. Recognized teachers participating in the pilot program shall
6 receive annual performance-based compensation under the program as
7 follows:

8 1. Compensation shall be based solely on measurable student
9 academic growth. Such growth shall be calculated using a value-
10 added model based on a rolling two-year period of statewide
11 assessment data; provided, however, during the first year of program
12 implementation, compensation shall be calculated using the previous
13 and current years of academic growth data;

14 2. The State Department of Education shall place participating
15 recognized teachers into three performance tiers based on their
16 statewide student growth percentiles as determined by student growth
17 on Oklahoma School Testing Program assessment data;

18 3. The percentile distribution shall be adjusted as necessary
19 to ensure that total annual expenditures do not exceed available
20 funding for the program;

21 4. Participating recognized teachers shall be identified using
22 equivalent performance tiers which may include Tier 1 for the
23 ninety-fifth percentile and above, Tier 2 for the ninetieth through
24

1 ninety-fourth percentiles, and Tier 3 for the eighty-fifth through
2 eighty-ninth percentiles; and

3 5. Awards shall be paid from the Teacher Empowerment Revolving
4 Fund created in Section 6-190.2 of Title 70 of the Oklahoma Statutes
5 by the State Department of Education as supplemental compensation.
6 The performance-based compensation shall not be included in the
7 calculation of the teacher's salary for purposes of meeting the
8 district or statutory minimum salary schedule or for purposes of
9 compensating Teachers' Retirement System of Oklahoma contributions
10 or benefits. No participating school shall be liable for payment of
11 the performance-based compensation pursuant to this section.

12 E. The State Board of Education shall promulgate rules to
13 implement the Growth-Based Teacher Compensation Program in
14 accordance with this section.

15 SECTION 3. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 6-214 of Title 70, unless there
17 is created a duplication in numbering, reads as follows:

18 A. As used in this section:

19 1. "Eligible teacher" means any certified teacher in any
20 subject area or grade level who is employed by a public school
21 district in this state; and

22 2. "National Board certification" means certification granted
23 by the National Board for Professional Teaching Standards to a
24

1 teacher who has successfully completed all requirements for initial
2 certification or renewal, as applicable.

3 B. There is hereby established a National Board Certification
4 Bonus Program for eligible teachers who hold or attain National
5 Board certification.

6 C. An eligible teacher who attains, or has attained and
7 continues to hold, National Board certification on or after the
8 effective date of this act shall receive an annual bonus of Five
9 Thousand Dollars (\$5,000.00) from the State Board of Education for a
10 five-year period subject to his or her continued employment with a
11 public school district in this state and maintenance of National
12 Board certification.

13 D. To begin receiving bonus payments, an eligible teacher shall
14 submit proof of his or her National Board certification to the State
15 Department of Education to receive his or her first annual bonus
16 payment which shall be paid no later than January 31 each year.
17 Bonuses shall be paid from the Teacher Empowerment Revolving Fund
18 created in Section 6-190.2 of Title 70 of the Oklahoma Statutes by
19 the State Department of Education as supplemental compensation. The
20 bonus shall not be included in the calculation of the teacher's
21 salary for purposes of meeting the district or statutory minimum
22 salary schedule or for purposes of compensating Teachers' Retirement
23 System of Oklahoma contributions or benefits. No school district
24 shall be liable for payment of bonuses pursuant to this section.

1 E. The State Board of Education shall promulgate rules to
2 implement the National Board Certification Bonus Program in
3 accordance with this section.

4 SECTION 4. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 6-215 of Title 70, unless there
6 is created a duplication in numbering, reads as follows:

7 A. 1. The Office of Educational Quality and Accountability
8 shall contract with an independent evaluator to conduct a rigorous
9 evaluation and report of both:

- 10 a. Growth-Based Teacher Compensation Program
11 implementation fidelity pursuant to the provisions of
12 Section 2 of this act, and
- 13 b. the bonus effects on student achievement and teacher
14 workforce outcomes resulting from implementation of
15 the Growth-Based Teacher Compensation Program pursuant
16 to Section 2 of this act and the National Board
17 certification bonus pursuant to Section 3 of this act.

18 2. The evaluation created by an independent evaluator shall
19 include:

- 20 a. comparison groups,
- 21 b. longitudinal student growth analysis,
- 22 c. workforce outcomes including retention and
23 recruitment, and

1 d. the number of teachers who have received a bonus for
2 obtaining National Board certification as provided for
3 in Section 3 of this act.

4 B. 1. Beginning January 1, 2028, the State Department of
5 Education shall electronically submit the results of the evaluation
6 and report to:

- 7 a. the Governor,
8 b. the President Pro Tempore of the Senate, and
9 c. the Speaker of the House of Representatives.

10 2. The evaluation shall include:

- 11 a. the number of participating teachers and schools,
12 b. growth distribution results,
13 c. compensation payments,
14 d. early-grade bonus distributions, and
15 e. findings from the independent evaluation conducted
16 pursuant to subsection A of this section.

17 SECTION 5. AMENDATORY 70 O.S. 2021, Section 3-116.2, is
18 amended to read as follows:

19 Section 3-116.2. A. Effective January 1, 2013, there is hereby
20 created the Commission for Educational Quality and Accountability.
21 The membership of the Commission shall consist of:

22 1. The Secretary of Education, who shall serve as the chair of
23 the Commission;

1 2. One member appointed by the Governor, with the advice and
2 consent of the Senate, representing business and industry from an
3 Oklahoma employer with five hundred (500) or fewer employees;

4 3. One member, appointed by the Governor, with the advice and
5 consent of the Senate, who is a parent of a child enrolled in a
6 public school in this state;

7 4. One member, appointed by the Governor, with the advice and
8 consent of the Senate, who is an administrator of a public school
9 district;

10 5. One member, appointed by the Governor, with the advice and
11 consent of the Senate, who shall represent higher education teacher
12 education programs;

13 6. One member, appointed by the Governor, with the advice and
14 consent of the Senate, who shall be an active classroom teacher in
15 kindergarten through grade six; and

16 7. One member, appointed by the Governor, with the advice and
17 consent of the Senate, who shall be an active classroom teacher in
18 grades seven through twelve.

19 Upon the effective date of this act, the terms of the six
20 appointed members shall be staggered such that the terms of no more
21 than two members end in the same year. The terms of the initial
22 appointed members shall commence on ~~January 1, 2013~~ July 1, 2028,
23 and shall end ~~on June 30, 2014~~ in accordance with designations by
24 the Governor, with the Governor designating two members whose terms

1 shall end on June 30, 2030, two members whose terms shall end on
2 June 30, 2031, and two members whose terms shall end on June 30,
3 2032. ~~The~~ Thereafter, the Governor shall appoint two members at a
4 time, and the terms of subsequently appointed members ~~shall commence~~
5 ~~on July 1 of each year following the election of the Governor~~
6 ~~thereafter and~~ shall be for four (4) years. If a vacancy occurs,
7 the vacancy shall be filled for the unexpired term in the same
8 manner as the office was previously filled.

9 B. A quorum of the Commission, which shall consist of four
10 members, shall be present in order for the Commission to transact
11 any business. Members shall be reimbursed for travel in the
12 performance of their official duties in accordance with the State
13 Travel Reimbursement Act.

14 C. Prior to July 1, 2013, the Commission shall meet to organize
15 and plan for the assumption of the powers and duties of the
16 Education Oversight Board and the Oklahoma Commission for Teacher
17 Preparation.

18 D. Beginning July 1, 2013, the Commission shall assume the
19 following duties:

20 1. Oversee implementation of the provisions of Enrolled House
21 Bill No. 1017 of the 1st Extraordinary Session of the 42nd Oklahoma
22 Legislature;

23 2. Implementation of the provisions of the Oklahoma Teacher
24 Preparation Act as provided for in law;

1 3. Make recommendations to the Governor and Legislature on
2 methods to achieve an aligned, seamless system from preschool
3 through postsecondary education; and

4 4. Set performance levels and corresponding cut scores pursuant
5 to the Oklahoma School Testing Program Act and as provided for in
6 Section 1210.541 of ~~Title 70 of the Oklahoma Statutes~~ this title.

7 E. Beginning July 1, 2013, the Commission shall govern the
8 operation of the Office of Educational Quality and Accountability
9 created in Section 3-117 of ~~Title 70 of the Oklahoma Statutes~~ this
10 title.

11 F. 1. Beginning July 1, 2014, the Commission shall assume the
12 following duties of the Oklahoma Commission for Teacher Preparation
13 according to the provisions of the Oklahoma Teacher Preparation Act:

- 14 a. approval and accreditation of teacher education
15 programs, and
16 b. assessment of candidates for licensure and
17 certification.

18 2. To implement the provisions of this subsection the
19 Commission shall:

- 20 a. include the State Board of Education in the process,
21 b. review and assess approved, accredited, and new
22 programs of teacher education, and
23 c. encourage studies and research designed to improve
24 teacher education.

1 SECTION 6. AMENDATORY 70 O.S. 2021, Section 3-116.5, is
2 amended to read as follows:

3 Section 3-116.5. A. On or before ~~October 31, 2021~~ November 1,
4 2027, and every three (3) years thereafter, the Commission for
5 Educational Quality and Accountability shall ~~issue~~ electronically
6 submit a report to the Speaker of the ~~Oklahoma~~ House of
7 Representatives, the President Pro Tempore of the ~~Oklahoma State~~
8 Senate, and the Governor detailing factors in the public education
9 system of the state that contribute to improvements in the:

10 1. Common education system, including, but not limited to, high
11 school graduation rates and college and career assessment scores;

12 2. Higher education and career and technology education
13 systems, including, but not limited to, timely graduation rates and
14 reduced remediation rates; and

15 3. State workforce, including, but not limited to, career
16 readiness and the ability for new graduates to find in-state
17 employment.

18 B. If the Commission finds there is insufficient information
19 available to fulfill any of the report objectives specified in
20 subsection A of this section, the report shall also contain
21 recommendations on ways to address information gaps between state
22 entities, such as the State Department of Education, the Oklahoma
23 Department of Career and Technology Education, and the Oklahoma
24 State Regents for Higher Education.

1 C. The Commission may contract with a private consultant or
2 consultants to assist with the development of the report.

3 D. The Commission may utilize any funds received including, but
4 not limited to, any state or federal funds, grants, or private
5 donations to assist with the development of the report or to assist
6 the Commission with its general purposes or duties prescribed by
7 statute.

8 SECTION 7. AMENDATORY 70 O.S. 2021, Section 6-211, is
9 amended to read as follows:

10 Section 6-211. The Commission for Educational Quality and
11 Accountability, in cooperation with the State Board of Education in
12 ~~cooperation with the Commission for Educational Quality and~~
13 ~~Accountability~~, the Oklahoma State Regents for Higher Education, and
14 institutions of higher education, shall conduct an educator supply-
15 and-demand study every three (3) years. The study shall identify
16 areas of teacher shortage and make recommendations for addressing
17 the areas of most critical need. The ~~Board~~ Commission shall
18 electronically submit a report outlining the findings to the
19 Governor, the Speaker of the House of Representatives, and the
20 President Pro Tempore of the Senate.

21 SECTION 8. AMENDATORY 70 O.S. 2021, Section 1210.531, is
22 amended to read as follows:

23 Section 1210.531. A. The Commission for Educational Quality
24 and Accountability shall establish an Oklahoma Educational

1 Indicators Program. The purpose of the ~~Program~~ program shall be to
2 develop and implement a system of measures whereby the performance
3 of public schools and school districts is assessed and reported
4 without undue reliance upon any single type of indicator, and
5 whereby the public, including students and parents, may be made
6 aware of the proper meaning and use of any tests administered under
7 the Oklahoma School Testing Program Act, relative accomplishments of
8 the public schools, and of progress being achieved. The Commission
9 shall involve representatives of school teachers and ~~of~~ school
10 administrators in the development of the ~~Program~~ program. The
11 ~~Program~~ program shall be so designed that use of standardized
12 definitions and measures and opportunities for coordination with
13 national reports, including those of the National Assessment of
14 Educational Progress, are maximized.

15 B. The Oklahoma Educational Indicators Program shall present
16 information for comparisons of graduation rates, dropout rates,
17 pupil-teacher ratios, student enrollment gain and loss rates, and
18 test results in the contexts of socioeconomic status and the
19 finances of school districts. Information shall be provided
20 individually for all public school sites and school districts in a
21 format that facilitates comparisons. As necessary data become
22 available, comparisons shall also be provided individually for all
23 schools and school districts on a historical basis. Reports of all
24 tests administered pursuant to the Oklahoma School Testing Program

1 Act shall be a part of the Oklahoma Educational Indicators Program
2 and shall be provided for each grade and each test subject or set of
3 competencies. Test results for students enrolled in Internet-based
4 courses, including regularly enrolled and alternative education
5 students, shall be disaggregated and reported. The Commission for
6 Educational Quality and Accountability shall seek to develop and
7 incorporate additional indicators of comparative standing and
8 accomplishment.

9 C. Additionally, the Commission for Educational Quality and
10 Accountability, with the cooperation of the State Department of
11 Education, the Oklahoma State Regents for Higher Education, and the
12 State Board of Career and Technology Education, shall develop
13 procedures for obtaining and reporting data to the high schools and
14 ~~to~~ the general public regarding the performance of each high
15 school's graduates in ~~Oklahoma's~~ institutions of higher education in
16 this state and in postsecondary vocational-technical education. The
17 Commission shall include workforce outcomes of high school graduates
18 including postsecondary enrollment, credential attainment,
19 employment, and earnings information as such data becomes available.
20 The Commission for Educational Quality and Accountability shall
21 include such data in the report of the Oklahoma Educational
22 Indicators Program.

23 D. By February 1 of each year the Commission for Educational
24 Quality and Accountability shall publish:

1 1. A summary report to the people and the Legislature ~~of~~
2 ~~Oklahoma~~ of the information provided by the Oklahoma Educational
3 Indicators Program; and

4 2. ~~State~~ State-, ~~district~~ district-, and ~~site-level~~ site-level
5 reports which shall include the percentage of students who perform
6 at the various levels on the tests required by the Oklahoma State
7 Testing Program.

8 Immediately following the publication of the reports required in
9 this subsection each year, all data gathered pursuant to the
10 Oklahoma Educational Indicators Program shall be made available for
11 public inspection at the Office of Educational Quality and
12 Accountability. The confidentiality of individual student records
13 shall be preserved as required by law.

14 E. In order to carry out the provisions of this section, the
15 Commission for Educational Quality and Accountability shall be
16 provided all data and reports necessary to develop and produce the
17 Oklahoma Educational Indicators Program reports within thirty (30)
18 days of the necessary data becoming available. Such data shall be
19 provided directly to the Commission by the State Department of
20 Education, the Oklahoma State Regents for Higher Education, the
21 State Board of Career and Technology Education, the Office of
22 Management and Enterprise Services, the Oklahoma Employment Security
23 Commission, and any state contractor or assessment vendor that
24 maintains or produces necessary data.

1 F. 1. The State Board of Education shall ensure that any
2 contracts with assessment vendors include a requirement that the
3 vendor transmit assessment results and related data files necessary
4 for the Oklahoma Educational Indicators Program directly to the
5 Commission for Educational Quality and Accountability at the same
6 time such results are transmitted to the State Department of
7 Education.

8 2. Data required by this subsection shall be provided to the
9 Commission without the need for a separate data-sharing agreement
10 with related state agencies and shall be subject to the Oklahoma
11 Open Records Act; provided, however, that the confidentiality of
12 individual student records shall be preserved as required by state
13 and federal law.

14 3. The Commission may contract with an independent third party
15 to receive, process, and report data submitted pursuant to this
16 subsection and may receive and expend federal or private grant funds
17 to carry out its duties pursuant to this section.

18 SECTION 9. This act shall become effective July 1, 2026.

19 SECTION 10. It being immediately necessary for the preservation
20 of the public peace, health, or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval."
23
24

1 Passed the Senate the 28th day of April, 2026.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives

1 ENGROSSED HOUSE
2 BILL NO. 4268

By: Johns and Waldron of the
House

3 and

4 Pugh of the Senate

5
6
7 [education - Teacher Effectiveness and Excellence
8 Act - terms - growth-based Teacher Compensation
9 Program - State Board of Education - pilot program
10 - eligibility - criteria - compensation - rules -
11 National Board Certification Bonus Program - bonus
12 - Office of Educational Quality and Accountability
13 - report - codification - effective date -
14 emergency]

15
16
17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 11. NEW LAW A new section of law not to be
19 codified in the Oklahoma Statutes reads as follows:

20 This act shall be known and may be cited as the "Teacher
21 Effectiveness and Excellence Act".

22 SECTION 12. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 6-213 of Title 70, unless there
24 is created a duplication in numbering, reads as follows:

1 A. As used in this section:

2 1. "Eligible teacher" means a full-time certified teacher in
3 grades fourth through eighth teaching English language arts and
4 mathematics;

5 2. "Participating school" means a public or charter elementary
6 or middle school serving students in grades fourth through eighth;

7 3. "Recognized teacher" means an eligible teacher whose
8 students demonstrate student growth at or above an established
9 growth threshold; and

10 4. "Student academic growth" means annual student progress as
11 measured by the Oklahoma State Testing Program.

12 B. There is hereby established the Growth-based Teacher
13 Compensation Program to be administered by the State Board of
14 Education. Beginning with the 2026-2027 school year, the pilot
15 program shall operate for a minimum of three (3) consecutive school
16 years.

17 C. To be eligible to participate in the program, teachers shall
18 be a full-time certified teacher in grades fourth through eighth
19 teaching English language arts and mathematics at a participating
20 school. The pilot program shall consist of one thousand five
21 hundred teachers representing approximately fifteen percent (15%) of
22 the highest performing teachers serving grades fourth through eighth
23 in eligible schools in Oklahoma. The State Board of Education shall
24

1 establish criteria for the selection of recognized teachers to
2 participate in the pilot program.

3 D. Recognized teachers participating in the pilot program shall
4 receive annual performance-based compensation under the program as
5 follows:

6 1. Compensation shall be based solely on measurable student
7 academic growth. Such growth shall be calculated using a value-
8 added model based on a rolling two-year period of statewide
9 assessment data; provided, however, during the first year of program
10 implementation, compensation shall be calculated using the previous
11 and current year of academic growth data;

12 2. The State Department of Education shall place participating
13 recognized teachers into three performance tiers based on their
14 statewide student growth percentiles as determined by student growth
15 on Oklahoma State Testing Program assessment data;

16 3. The percentile distribution shall be adjusted as necessary
17 to ensure that total annual expenditures do not exceed available
18 funding for the program;

19 4. Participating recognized teachers shall be identified using
20 equivalent performance tiers which may include Tier 1 (95th
21 percentile and above), Tier 2 (90th through 94th percentiles), and
22 Tier 3 (85th through 89th percentiles); and

23 5. Awards shall be paid from the Teacher Empowerment Revolving
24 Fund, created in Section 6-190.2 of Title 70 of the Oklahoma

1 Statutes by the State Department of Education as supplemental
2 compensation. The performance-based compensation shall not be
3 included in the calculation of the teacher's salary for purposes of
4 meeting the district or statutory minimum salary schedule or for
5 purposes of compensating Oklahoma Teachers' Retirement System
6 contributions or benefits. No participating school shall be liable
7 for payment of the performance-based compensation pursuant to this
8 section.

9 E. The State Board of Education shall promulgate rules to
10 implement the Growth-based Teacher Compensation Program in
11 accordance with this section.

12 SECTION 13. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 6-214 of Title 70, unless there
14 is created a duplication in numbering, reads as follows:

15 A. As used in this section:

16 1. "Eligible teacher" means any certified teacher in any
17 subject area or grade level who is employed by a public school
18 district in this state; and

19 2. "National Board Certification" means certification granted
20 by the National Board for Professional Teaching Standards to a
21 teacher who has successfully completed all requirements for initial
22 certification or renewal, as applicable.

23

24

1 B. There is hereby established a National Board Certification
2 Bonus Program for eligible teachers who hold or attain National
3 Board Certification.

4 C. An eligible teacher who attains, or has attained and
5 continues to hold, National Board Certification on or after the
6 effective date of this act shall receive an annual bonus of Five
7 Thousand Dollars (\$5,000.00) from the State Board of Education for a
8 five-year period subject to his or her continued employment with a
9 public school district in this state and maintenance of National
10 Board Certification.

11 D. To begin receiving bonus payments, an eligible teacher shall
12 submit proof of his or her National Board Certification to the State
13 Department of Education to receive his or her first annual bonus
14 payment which shall be paid no later than January 31 each year.
15 Bonuses shall be paid from the Teacher Empowerment Revolving Fund,
16 created in Section 6-190.2 of Title 70 of the Oklahoma Statutes by
17 the State Department of Education as supplemental compensation. The
18 bonus shall not be included in the calculation of the teacher's
19 salary for purposes of meeting the district or statutory minimum
20 salary schedule or for purposes of compensating Oklahoma Teachers'
21 Retirement System contributions or benefits. No school district
22 shall be liable for payment of bonuses pursuant to this section.

1 E. The State Board of Education shall promulgate rules to
2 implement the National Board Certification Bonus Program in
3 accordance with this section.

4 SECTION 14. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 6-215 of Title 70, unless there
6 is created a duplication in numbering, reads as follows:

7 A. 1. The Office of Educational Quality and Accountability
8 shall contract with an independent evaluator to conduct a rigorous
9 evaluation and report of both:

10 a. Growth-based Teacher Compensation Program

11 implementation fidelity, and

12 b. Growth-based Teacher Compensation Program and the
13 National Board Certification bonus effects on student
14 achievement and teacher workforce outcomes.

15 2. The evaluation created by an independent evaluator shall
16 include:

17 a. comparison groups,

18 b. longitudinal student growth analysis,

19 c. workforce outcomes, including retention and
20 recruitment, and

21 d. the number of teachers who have received a bonus for
22 obtaining National Board Certification as provided for
23 in Section 3 of this act.
24

1 B. 1. Beginning January 1, 2028, the State Department of
2 Education shall submit the results of the evaluation and report to:

3 a. the Governor,

4 b. the President Pro Tempore of the Oklahoma State
5 Senate, and

6 c. the Speaker of the Oklahoma House of Representatives.

7 2. The evaluation shall include:

8 a. number of participating teachers and schools,

9 b. growth distribution results,

10 c. compensation payments,

11 d. early-grade bonus distributions, and

12 e. findings from the independent evaluation.

13 SECTION 15. This act shall become effective July 1, 2026.

14 SECTION 16. It being immediately necessary for the preservation
15 of the public peace, health or safety, an emergency is hereby
16 declared to exist, by reason whereof this act shall take effect and
17 be in full force from and after its passage and approval.

1 Passed the House of Representatives the 24th day of March, 2026.

2
3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

7
8 _____
9 Presiding Officer of the Senate